

July 10, 2026, Civil Law & Motion Tentative Rulings

1. CU0001483 Susan Gabrielle, Formerly Known as Susan G. Turner-Conlon vs. Phillip G. Conlon, Jr.

Appearances required by the parties to discuss the status of the sale or refinancing of the property.

2. CL0003307 Wells Fargo Bank, N.A. vs. Lori Arlene Mitchell, an individual

Defendant's motion for summary judgment is dropped as moot in light of the dismissal entered on April 27, 2026.

3. CU0000090 Palleschi, Matthew et al v. Daniel Fraiman Construction, Inc. et al

Appearances required by all parties to update the Court as to the status of the discovery motions continued to July 10, 2026. The parties were ordered to meet and confer further, and submit a joint status report by June 26, 2026. The Court received a one-sided status report and various emails between counsel. The Court requires appearances to determine where the discovery issues stand. Per Counsel's Joint Status Report, the discovery issue between Artisan and Plaintiff is resolved.

4. CU0001849 Gregory Thrush vs. Jose Antonio Valdovinos

Motion to Reset Trial or CMC Dates

Due to the dismissal of Defendant's bankruptcy action, and thus the stay that was entered on January 14, 2026 is no longer in effect, the Court sets a further Case Management Conference for August 10, 2026, at 9:00 a.m. in Department 6.

Motion for Leave to File Second Amended Complaint

Plaintiff Gregory Thrush's motion for leave to file verified second amended complaint is granted.

Legal Standard

The Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. Code Civ. Proc., § 473(a)(1). "The discretionary power to allow amendments to the pleadings ... must be exercised liberally at all stages of the proceeding" and is usually exercised in favor of allowing amendments. *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180. Additionally, "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428. However, leave to amend may be properly denied if there is an unwarranted delay in seeking the relief and where the opposing party demonstrates that it will incur prejudice as a result. *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761. Unreasonable delay alone does